

Chaluvaraj vs Smt Girija H R @ Dhanalakshmi on 29 May, 2023

Author: Alok Aradhe

Bench: Alok Aradhe

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MFA No. 308 of 2017

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 29TH DAY OF MAY, 2023

PRESENT

THE HON'BLE MR JUSTICE ALOK ARADHE

AND

THE HON'BLE MR JUSTICE ANANT RAMANATH HEGDE

MISCELLANEOUS FIRST APPEAL NO. 308 OF 2017 (MC)

BETWEEN:

CHALUVARAJ

S/O B SHIVANNA,

AGED ABOUT 46 YEARS,

P.E.TEACHER,

MORARJI DESAI MODEL RESIDENTIAL SCHOOL,

ANCHECHOMANAHALLI, KUPPALU,

KERESANTHE POST,

KAUR TALUK-577548.

... APPELLANT

(BY SRI. ONKAR K B., ADVOCATE)

AND:

Digitally signed

by BELUR

RANGADHAMA

NANDINI

Location: HIGH

COURT OF

KARNATAKA

SMT GIRIJA H R @ DHANALAKSHMI

W/O CHALUVARAJ,

AGED ABOUT 41 YEARS,

CRAFT TEACHER,

GOVERNMENT HIGH SCHOOL,

KABBINA SETHUVE

... RESPONDENT

(BY SRI.B.A.SOMANNA, ADVOCATE - ABSENT)

THIS MFA IS FILED UNDER SECTION 28(1) OF THE FAMILY COURTS ACT, AGAINST THE JUDGMENT AND DECREE DATED 25.11.2016 PASSED IN M.C.NO.28/2013 ON THE FILE OF THE SENIOR CIVIL JUDGE & JMFC, KADUR, DISMISSING THE PETITION FILED U/S 13(i-a)(i-b), OF THE HINDU

MARRIAGE ACT.

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MFA No. 308 of 2017

THIS APPEAL COMING ON FOR HEARING THIS DAY, ANANT
RAMANATH HEGDE J., DELIVERED THE FOLLOWING:

JUDGMENT

This appeal is filed under Section 28(1) of the Family Courts Act, 1984 by the husband/petitioner in M.C. No.28/2013 on the file of the Senior Civil Judge and JMFC, Kadur. The petition filed by the husband under Section 13(1) (ia) (ib) of the Hindu Marriage Act, 1955 (hereafter referred to as 'the Act'), seeking dissolution of marriage on the grounds of cruelty and desertion is dismissed by the Family Court.

2. For the sake of convenience, hereinafter the parties to the proceeding are referred to as husband and wife.

3. Facts in brief are:

The parties to the proceedings were married on 11.05.2003. At the time of marriage, the husband was working as a temporary teacher, whereas the wife was working as a permanent teacher in a Government School. Admittedly, both were working in different places. The husband was working in Kadoor and the wife was working in Igoor. The son was born to the couple in May 2004. The husband stated that he was getting a meager salary and the wife was getting a higher salary. Wife never discharged the duty towards the husband and she left his company in the year 2004 and thereafter she never returned. It is also his contention that when his mother was not keeping well, he requested his wife to come back to the house in Kadoor, however, the wife refused to join the husband and he further states that after having left the company of the husband, the wife never returned to the marital fold and hence sought for dissolution of marriage on the grounds of cruelty and desertion.

4. The wife has contested the matter and she has denied the allegations leveled against her. It is also the contention of the wife that she thought it appropriate to continue her job as the husband was not having a permanent job. She being a government employee had a higher salary and she needed money to look after the son and family. It is also the contention of the wife that she is ready and willing to stay with the husband and there is no cause of action to seek dissolution of marriage on the ground of cruelty and desertion and prayed for dismissal of the petition.

5. Before the Family Court, the husband is examined as P.W.-1 and he has produced one document which is marked at Ex.P-1. The wife is examined as R.W-1 and no document is produced on behalf of the wife.

6. The Family Court after hearing the parties and after considering the evidence concluded that the cruelty and desertion are not established by the husband and accordingly dismissed the petition. Hence, the appeal by the husband.

7. Learned counsel appearing for the husband would contend that the husband has established his contention relating to desertion and the same is also evident from the admission given by the wife in the cross-examination. The Family Court has not appreciated the oral evidence from a proper perspective and has erroneously dismissed the petition. It is also his contention that for 19 years the husband and the wife are not staying together. The wife has not allowed the husband to visit his son ever since his birth. The trial Court has failed to appreciate all these factors and has erroneously concluded that the husband has failed to establish the plea of cruelty and desertion.

8. In support of his contention, learned counsel for the husband would also place reliance on the following judgments of the Hon'ble Apex Court as well as the judgments of the High Court of Rajasthan, the judgment of the High Court of Patna and the judgment of the High Court of Delhi.

1. Geeta Jagdish Mangtani vs. Jagdish Mangtani (Arun Kumar J.) reported in (2005) 8 SCC 177.

2. Sandeep Kumar vs. Smt. Sonali Kumar, reported in AIR 2008 RAJASTHAN 75.

3. Deo Kumar Sah vs. Anjali Kumari Sah, reported in AIR 2009 PATNA 4.

4. Anith Sachdeva vs. Deepak Kumar Sachdeva, reported in (2007) 142 DLT 550.

5. Sandhya Rani vs. Kalyanram Narayanan, reported in 1994 Supp (2) SCC 588.

6. Rishikesh Sharma vs. Saroj Sharma, reported in (2007) 2 SCC 263.

9. This Court has considered the contentions raised at the bar and perused the records and the judgments cited at the bar.

10. The law relating to the pleading and proof of desertion is well-settled in terms of the judgment of the Hon'ble Apex in the case of LACHMAN UTAMCHAND KIRIPALANI Vs. MENA @ MOTA reported in AIR 1964 SC 40 which has been followed in DEBANANDA TAMULI Vs. KAKUMONI KATAKY reported in (2022) SCC Online SC 187. The Apex court has held that desertion means the intentional abandonment of the spouse by the other without the consent of the other and a reasonable cause. It has further been held that a deserted spouse must prove that there is a factum of separation and there is an intention on the part of deserting spouse to bring the cohabitation to a permanent end. It has also been held that in other words, there should be animus deserendi on the part of the deserting spouse.

11. It is an admitted fact that the husband and wife were employed when the marriage took place in the year 2003. Admittedly, the wife was working in a different place and the husband was working in a different place. Wife was having a permanent Government job and the job of the husband was

not permanent. The wife was earning a higher salary than the husband. On analysis of the stand taken by the husband in his pleading and the evidence, it is apparent that the husband is pleading desertion on the ground that the wife is not staying with the husband and she is pursuing her job. As already noticed the wife was working as a Government school teacher in a place away from the place where the husband is residing. That being the position, the wife staying at a particular place of work cannot be construed as desertion on the part of the wife to attract Section 13(1)(ia) of the Act.

12. As far as the allegations relating to cruelty, it is to be noticed that except for stating that the wife has refused to join the house of the husband and used to insult him by using abusive language nothing is pleaded or nothing is pleaded in the petition giving details about the specific illustration of alleged cruelty and desertion. As far as the evidence is concerned, except for the husband's reiteration of the averments in the petition, no other evidence is led. Whereas, in the cross-examination, it is suggested that the wife has expressed her intention to stay with her husband after the husband's job becomes permanent, however, the husband is not willing to join her.

13. It is also forthcoming from the records that the husband has not made any attempt to seek the custody of his child or has sought visitation rights when it is his case that the wife did not allow him to see his son. On the other hand, the wife in the cross-examination stated that the husband used to visit the son whenever there was a vacation and his visitation continued up to 2010. This appears to be true, given the fact the husband has not filed any petition seeking custody of the son or visitation right. Applying the test of preponderance of probability, this Court has to accept the contention of the wife that the husband used to visit the son where she was working in Igoor. If not, the Court must hold that the husband had no interest in the son and his wife and he deliberately stayed away.

14. It is also relevant to note that when the parties married in 2007, the husband and wife were working in different places and the husband also wanted his wife to work as he was not having a permanent job and was not having sufficient income. It is only after he got a permanent job he seems to have expressed the desire that the wife should quit the job and join him. If that is the case, the act of the wife continuing with her job and staying in a place of work is not an act of desertion within the meaning of Section 13(1)(1b) of the Act. From the evidence placed on record, this Court is of the view that the respondent failed to produce any acceptable evidence to accept the contention relating to the desertion.

15. The plea of cruelty is also not established as the husband has not pleaded about the specific illustrations of cruelty and has not made out a case that the wife acted in such a way that it has become impossible to live with her. Thus, the plea of desertion is also not established.

16. As far as the judgment relied upon by the learned counsel for the appellant is concerned in the case of Geeta Jagdish Mangtani vs. Jagdish Mangtani (supra), the Hon'ble Apex Court has taken a view that the marriage between the parties is inevitably broken down and there is no point in dismissing the petition and asking the parties to lead a marital life and in the exercise of power under Article 142 of Constitution of India, the Apex Court has granted decree for dissolution of marriage. It is also required to be noticed that in

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the said proceeding, the wife has taken a contention that the husband has married again. The same is not the situation in this case. For the aforementioned reasons, this Court deems that the facts of the case referred supra does not apply to the case on hand and even in the case of Rishikesh Sharma vs. Saroj Sharma, (supra) the Apex Court has exercised power under Article 142 of the Constitution of India on the premise that the marriage between the parties has inevitably broken down and granted decree for dissolution of marriage. This Court cannot exercise power under Article 142 of the Constitution of India and the same has been carried out by the Apex Court in various judgments.

17. As far as the judgment relied upon by the learned counsel for the husband in the case of Sandeep Kumar vs. Smt. Sonali Kumar (supra) it is to be noticed that in the said case, the Court has taken a view that the husband has proved his case that the wife has deserted the company of the husband to put a permanent end to the marital relationship.

18. We have already analysed the evidence placed before this Court and from which it is apparent that the wife

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was staying away from the house of the husband as she was employed as a Government teacher in a primary school which was away from the house of the husband. That being the position the act of the wife staying away from the place away from the house of the husband cannot be termed as an act of desertion. Hence, the judgment laid down in the aforementioned case does not apply to the facts of the case on hand.

19. As far as the judgment of the Apex Court in the case of Deo Kumar Sah vs. Anjali Kumari Sah, (supra) referred to by the learned counsel for the husband is concerned, from the judgment it is apparent that the husband in the said case has established a fact that he has made an attempt in bringing conciliation between him and his wife and despite his efforts the wife has refused to join the company of the husband. Whereas in this case, there is nothing in the pleading to show that the husband has attempted to bring his wife back to the marital home. Even the evidence is not led by the husband to show that he has attempted to bring back the wife to the marital home. Though the averments made in the plaint state that the wife has abused the mother of the

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husband, the mother is not examined for the reasons specified by the husband.

20. For the aforementioned reasons, this Court is of the view that the ratio laid down in the judgments cited by the learned counsel for the husband does not apply to the facts in this case. We have also gone through the reasoning assigned by the Family Court in dismissing the petition seeking the dissolution of the marriage. The Family Court has given a finding that the husband has not established the plea of cruelty as well as desertion. The Court has also concluded that the wife

was staying away from the husband on account of her avocation as a Government school teacher in Igoor and the act of the wife staying away from the husband cannot be construed as an act of desertion. Under these circumstances, this Court is of the view that there are no grounds to grant a decree for the dissolution of marriage by setting aside the well-reasoned judgment passed by the Family Court. Hence, the following:

ORDER

(i) The judgment and decree passed in M.C.No.28/2013, dated. 25.11.2016 on the

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file of the Senior Civil Judge & JMFC, Kadru is affirmed.

(ii) The appeal is dismissed.

Sd/-

JUDGE Sd/-

JUDGE GVP